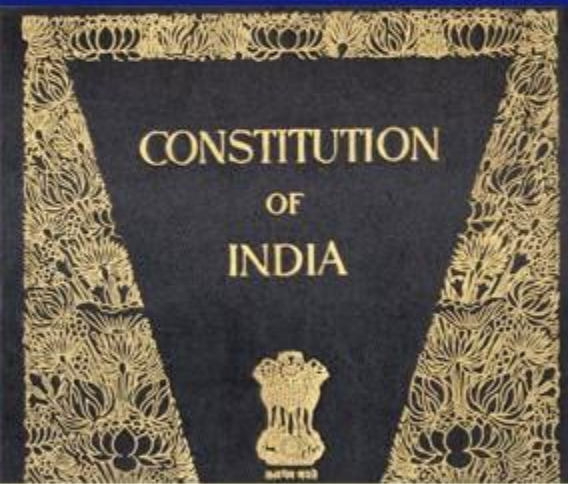


# INDIAN POLITY



**MODULE - 36**

**FUNDAMENTAL RIGHTS**  
▪ **ARTICLE 21 A & 22**

## FUNDAMENTAL RIGHTS

### RIGHT TO EDUCATION

#### ARTICLE 21A



- 1 Article 21 A declares that the State shall provide free and compulsory education to all children of the age of six to fourteen years in such a manner as the State may determine.
- 2 Thus, this provision makes only elementary education a Fundamental Right and not higher or professional education.
- 3 This provision was added by the 86<sup>th</sup> Constitutional Amendment Act of 2002. This amendment is a major milestone in the country's aim to achieve "Education for All".



## FUNDAMENTAL RIGHTS

### RIGHT TO EDUCATION

#### ARTICLE 21A

**4** The Government described this step as “the dawn of the second revolution in the chapter of citizens’ rights”.

**5** Even before this amendment, the Constitution contained a provision for free and compulsory education for children under Article 45 in Part IV.

**6** However, being a directive principle, it was not enforceable by the courts. Now, there is scope for judicial intervention in this regard.

**7** This amendment changed the subject matter of Article 45 in directive principle. It now reads “The State shall endeavor to provide early childhood care and education for all children until they complete the age of six years.”

*The State shall endeavor to provide for free & compulsory education for all children until they complete the age of 14 years was originally present in the DPSP.*

## FUNDAMENTAL RIGHTS

### RIGHT TO EDUCATION

#### ARTICLE 21A



- 8 It also added new fundamental duty under Article 51 A that reads – “It shall be the duty of every citizen of India to provide opportunities for education to his child or ward between the age of six and fourteen years”.



**QUESTION**

**Consider the changes brought into effect by 86<sup>th</sup> Constitutional Amendment Act**

- 1) A new Article 21A was inserted into the Indian Constitution.
- 2) It added into Article 45 the statement of “the state shall endeavor to provide for free & compulsory education for all children until they complete the age of 14 years”.
- 3) It also added a new fundamental duty in Article 51A that reads “ it shall be the duty of every citizen of India to provide opportunities for education to his child between the age of six & fourteen years”.

**Select the correct statements using the codes given below**

- |               |                    |
|---------------|--------------------|
| a) 1 & 2 only | b) 2 & 3 only      |
| c) 1 & 3 only | d) 1, 2 and 3 only |

## EXPLANATION

- Answer : C
- Statement 1 and 3 are correct.
- However, the provision given in statement 2 “the state shall endeavor to provide for free & compulsory education for all children until they complete the age of 14 years” was originally present in the DPSP.
- It was replaced by 86<sup>th</sup> CAA with the following lines “ *The state shall endeavor to provide early childhood care and education for all children until they complete the age of six years*”.



## FUNDAMENTAL RIGHTS

### RIGHT TO EDUCATION

#### ARTICLE 21A



**9** In 1993 itself, the Supreme Court recognised a Fundamental Right to Primary Education in the Right to Life under Article 21. It held that every citizen of this country has a right to free education until he completes the age of 14 years.

**10** Thereafter his right to education is subject to the limits of economic capacity and development of the State.

## FUNDAMENTAL RIGHTS

### RIGHT TO EDUCATION

#### ARTICLE 21A



**11** In this judgment, the Court overruled its earlier judgment (1992) which declared that there was a fundamental right to education up to any level including professional education like Medicine and Engineering.

**12** In pursuance of Article 21 A, the Parliament enacted the Right of Children to Free and Compulsory Education (RTE) Act, 2009.



## FUNDAMENTAL RIGHTS

### RIGHT TO EDUCATION

#### ARTICLE 21A



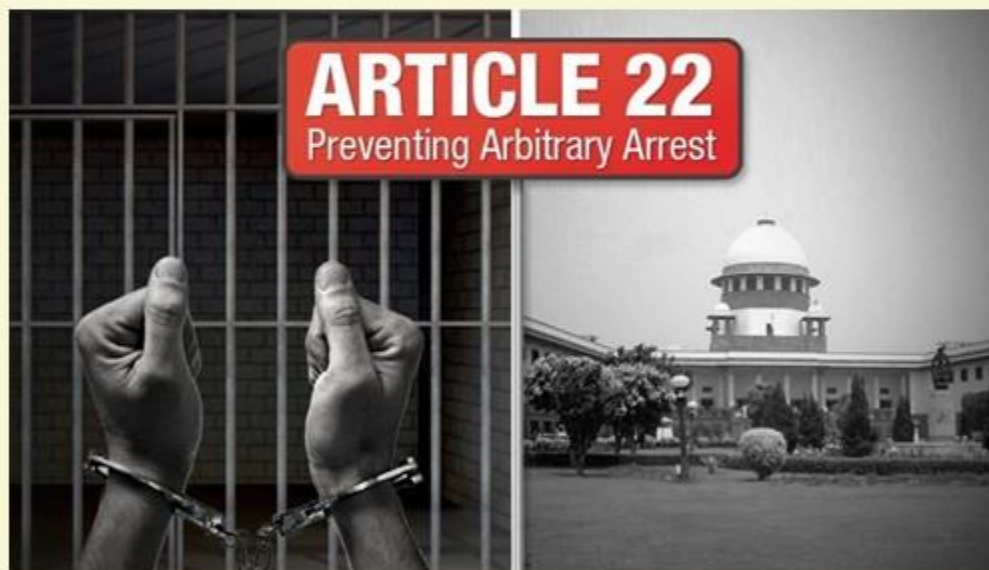
**13** This Act seeks to provide that every child has a right to be provided full time elementary education of satisfactory and equitable quality in a formal school which satisfies certain essential norms and standards.

**14** This legislation is anchored in the belief that the values of equality, social justice and democracy and the creation of just and humane society can be achieved only through provision of inclusive elementary education to all.

## FUNDAMENTAL RIGHTS

### PROTECTION AGAINST ARREST AND DETENTION

#### ARTICLE 22



- 1 Article 22 grants protection to person who are arrested or detained.
- 2 Detention is of two types, namely, **punitive and preventive**.
- 3 Punitive detention is to punish a person for an offence committed by him **after trial and conviction** in a court.
- 4 Preventive Detention, on the other hand, means **detention of a person without trial and conviction by a court**.



# INDIAN POLITY

## FUNDAMENTAL RIGHTS

### PROTECTION AGAINST ARREST AND DETENTION

#### ARTICLE 22



**6** Its purpose is not to punish a person for a past offence, but to prevent him from committing an offence in the near future.

**7** Thus, preventive detention is only a precautionary measure and based on suspicion.

### WHAT IS THE DIFFERENCE BETWEEN PREVENTIVE AND PUNITIVE DETENTION?

- 1 Preventive detention means detention of a person without trial. It is so called in order to distinguish it from punitive detention.
- 2 The object of punitive detention is to punish a person for what he has done and after he is tried in the Courts for the illegal act committed by him.
- 3 The object of preventive detention on the other hand is to prevent him from doing something and the detention in this case takes place on the apprehension that he is going to do something wrong which comes within any of the grounds specified by the Constitution.
- 4 This includes acts prejudicial to the security of the State, public order, maintenance of supplies and services essential to the community, defence, foreign affairs or security of India.
- 5 In fact, preventive detention is resorted to in such circumstances that the evidence in possession of the authority is not sufficient to make a charge or to secure the conviction of the person by legal proofs.
- 6 But, it may still be sufficient to justify his detention on the suspicion that he would commit a wrongful act unless he is detained.



### WHAT IS THE DIFFERENCE BETWEEN PREVENTIVE AND PUNITIVE DETENTION?



7 Preventive detention is something unknown in the United States of America or the United Kingdom in times of peace.

8 The adoption in India on a permanent footing, of the power of the executive to arrest persons on suspicion, which is tolerated in the other Countries only in emergencies, cannot, on principle, be justified by any lover of liberty.

9 But, the circumstances which was prevalent during the times when India got independent compelled the framers of the Constitution to make preventive detention as a part of the Indian Fundamental Rights.

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